



File No.: EXP202310268

## RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) exercised the right to erasure against LIRONA, S.L. (hereinafter, the respondent) without receiving the legally established response to his request.

The claimant states that he sent his request on October 4, 2020, via email to \*\*\*EMAIL.1.

"I addressed Lirona SL via attached email. My data may be in the possession of the company as I sent a dossier with my academic and artistic curriculum by postal mail (...)"

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated that "(...) it has never held a competition for the design of bottle sketches, nor has it ever received design offers, as it does not operate in this manner.

(...) We would need to have some more information, such as proof of email sent, an invoice, or a certificate indicating the date of sending would help us respond, as it is our intention to collaborate to clarify the matter."

They indicate that the email address of the data controller, \*\*\*EMAIL.2, is listed on their website.

"We consider that almost three years have passed since that email exercising data protection rights allegedly sent on October 4, 2020, to an address that is not designated for the attention and response regarding data protection matters, coupled with the fact that there has never been any contact between the claimant and the company. In other words, it is said that a postal email was sent offering a product, but there has been no follow-up via email to verify if it arrived, if there was any discussion about the opportunity of the sending, and not even if the content was liked."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the claimant's requests to be deemed satisfied. Consequently, on September 20, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing, given that the respondent has not provided a satisfactory response to the transfer of the complaint carried out by this AEPD, as it has not proven the response directed to the claimant following the transfer action and request for information.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days it could present the allegations it deemed appropriate, stating, in summary, "Regarding the lack of evidence of a contact that we could even call indicative of an adequate or suitable professional relationship to consider the alleged affected party as interested according to Articles 15 to 20 of the GDPR.

We must say that Mr. (...) does not prove at any time a relationship with the reported company (Articles 4 and 11 GDPR).

The company has no record of a simple phone call, nor WhatsApp, nor emails, nor absolutely any communication with this gentleman."

"(...) Regarding the passage of time, we must note that the only contribution made in the complaint file is an email dated 04/10/2020, and the complaint is dated 20/06/2023. This time lapse undermines the legal certainty protected by our Legal System. So much so that the lack of diligence in exercising the rights of the alleged affected party could be considered an abandonment of their hypothetical interests.

Furthermore, the complaint includes an email referencing a letter sent by regular mail, without any specific date of such sending being able to be established. Perhaps within the three previous years following the diligence maintained by the alleged harmed party.

This creates uncertainty for the reported company, which limits its ability to act in accordance with the law.”

The respondent states that it has sent an email to the claimant “(...) and has shown not the slightest interest in proving a legal, labor, professional, or any other type of relationship that would obligate Lirona S.L. to apply a data protection protocol, as has been the general norm of Lirona S.L.”

Several emails exchanged between the parties are provided, in which, at the request of the respondent to indicate the commercial, professional, or similar relationship they maintain, the claimant responded that he reiterated what was already stated in the complaint submitted to the Spanish Agency for Data Protection, and the reported entity again asks him to indicate the relationship between them “that requires his consent to initiate the data processing procedure.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/9

Furthermore, it indicates the "Inappropriate Use of the Professional Identity Card by the alleged affected party.

We must express our surprise that a professional card from (...) is included in the sanctioning file. This seems disproportionate and inappropriate to us, perhaps attempting to compensate for the deficiencies of the complaint with the authority presumed to belong to those representing the State, although obviously in other areas.

This overreach deserves reproach and may need to be brought to the attention of the General Council of the Judiciary (CGPJ).

In short, it is well known that the only means of verifying the identity of a natural person in Spain are as follows:

- The National Identity Document (DNI).
- Passport.
- Driver's license."

FOURTH: After examining the document submitted by the responding party, it is forwarded to the complaining party, so that, within ten working days, they may make any allegations they deem appropriate, failing to make allegations within the established timeframe.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on September 20, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the complainant was notified of the admission agreement. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation."

### III

#### Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller. The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

#### IV

##### Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, it shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](http://sedeagpd.gob.es)

6/9

- a) to exercise the right to freedom of expression and information;
- b) for the fulfillment of a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right indicated in paragraph 1 could make it impossible or seriously hinder the achievement of the objectives of such processing, or
- e) for the formulation, exercise, or defense of claims."

#### V

##### Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the aspects related to the request for deletion by the claimant will be analyzed and assessed, excluding the rest of the issues raised.

In this case, and considering the provisions of the first paragraph of this legal basis, it has been established that the claimant sent an email to the respondent requesting the deletion of their data. During this procedure, the respondent states that the right was not exercised through the address established on their website.

The respondent claims that they did not respond to the right of access because the exercise was not submitted through the established channel.

This Spanish Agency for Data Protection has verified that the email address where the claimant submitted their exercise of rights, \*\*\*EMAIL.1, is listed on the respondent's website in the "Controller"

section, where they indicate that "(...) the website and the services offered are operated by Lirona S.L. (...)"

Consequently, it has been established that the claimant exercised their right of access before the respondent through one of the email addresses provided on their website, and that their right has not been addressed.

Although it is appropriate for such a request to be directed to the address declared by the controller for the purpose of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the controller is a valid destination for the same, in accordance with Article 12 of LODPGDD, which states: "The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be...

C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
7/9

easily accessible to the affected party. The exercise of the right cannot be denied solely on the grounds that the affected party has opted for another means."

The Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

"54. It should be noted that the data controller is not obliged to respond to a request sent to a random or incorrect email address (or postal address) not provided directly by the data controller, nor to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the data controller has provided an appropriate communication channel that can be used by the data subject."

In the case examined, the email used by the complainant was the email designated on the website as that of the data controller, not being an address that can be classified as random or incorrect, nor one that has not been provided by the data controller, nor is it a channel that is clearly not intended to receive requests related to the rights of the data subjects.

The address of the "data protection officer" to which the complainant was supposedly required to send their exercise of rights is also not clearly specified as being designated for receiving such requests, as it indicates that it is for inquiries related to the Data Protection Act.

Regarding the time elapsed since the complainant requested their right until they filed a complaint for not being attended to, the data protection regulations do not establish the time period available to the complainant to claim for the non-attendance of the exercised right.

As for the means used by the complainant to identify themselves, it should be noted that Article 11 of the GDPR, Processing that does not require identification, states that

"1. If the purposes for which a controller processes personal data do not require or no longer require the identification of a data subject by the controller, the controller shall not be obliged to maintain, obtain, or process additional information for the sole purpose of identifying the data subject in order to comply with this Regulation.

2. When, in the cases referred to in paragraph 1 of this Article, the controller is able to demonstrate that it is not in a position to identify the data subject, it shall inform the data subject accordingly, if possible. In such cases, Articles 15 to 20 shall not apply, except when the data subject, for the purposes of exercising their rights under those Articles, provides additional information that allows for their identification."

And Article 12, paragraphs 2 and 6 of the same legal text:

"Article 12  
C/ Jorge Juan, 6  
www.aepd.es  
28001 – Madrid  
sedeagpd.gob.es  
8/9

2. The data controller shall facilitate the exercise of the rights of the data subject in accordance with Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act at the request of the data subject in order to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is unable to identify the data subject.

6. Without prejudice to the provisions of Article 11, when the data controller has reasonable doubts regarding the identity of the individual making the request referred to in Articles 15 to 21, it may request that additional information be provided to confirm the identity of the data subject.” (the underlining is ours)

Therefore, the right is considered to have been validly exercised.

It cannot be accepted that the response that should be given can be manifested during a mere administrative procedure, such as the submission of allegations in the context of this procedure, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the controllers are obliged to issue, even in cases where there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that initiated this procedure.

In light of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge LIRONA, S.L. with NIF B11775517, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to LIRONA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

[www.aepd.es](http://www.aepd.es)

28001 – Madrid

[sedeagpd.gob.es](mailto:sedeagpd.gob.es)